

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey Graetz	Team: Squad #16	CCRB Case #: 202200397	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 01/16/2022 1:45 AM	Location of Incident: Brooklyn Central Booking	18 Mo. SOL 7/16/2023	Precinct: 84
Date/Time CV Reported Thu, 01/20/2022 1:21 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 01/20/2022 1:21 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. PO Alix Blot	19157	967778	073 PCT
3. PO Jamiealexander Fenton	09996	970514	073 PCT
4. SGT James Divino	04475	946943	BK COURT
5. PO Patrick Venetek	10886	942662	BK COURT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Vincent Biscardi	19500	967776	073 PCT
2. PO Kevin Shaw	00795	963751	BK COURT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT James Divino	Force: In front of the segregated cells in Brooklyn Central Booking, Sergeant James Divino used physical force against § 87(2)(b)	A . Exonerated
B . PO Patrick Venetek	Force: In front of the segregated cells in Brooklyn Central Booking, Police Officer Patrick Venetek used physical force against § 87(2)(b)	B . Exonerated
C . PO Patrick Venetek	Force: In front of the segregated cells in Brooklyn Central Booking, Police Officer Patrick Venetek used physical force against § 87(2)(b)	C . Exonerated
D . SGT James Divino	Force: In front of the segregated cells in Brooklyn Central Booking, Sergeant James Divino used physical force against § 87(2)(b)	D . Exonerated
E . SGT James Divino	Force: In front of the segregated cells in Brooklyn Central Booking, Sergeant James Divino restricted § 87(2)(b) breathing.	E . Unsubstantiated
F . SGT James Divino	Force: In front of the segregated cells in Brooklyn Central Booking, Sergeant James Divino used a chokehold against § 87(2)(b)	F . Unsubstantiated
G . Officers	Force: In front of the segregated cells in Brooklyn Central Booking, Officers kicked § 87(2)(b)	G . Unsubstantiated
H . SGT James Divino	Force: In front of the segregated cells in Brooklyn Central Booking, Sergeant James Divino used hand strikes against § 87(2)(b)	H . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
I . PO Alix Blot	Force: In a stairwell of Brooklyn Central Booking, Police Officer Alix Blot used physical force against § 87(2)(b)	I . Exonerated
J . PO Jamiealexander Fenton	Force: In a stairwell of Brooklyn Central Booking, Police Officer Jamiealexander Fenton used physical force against § 87(2)(b)	J . Exonerated
K . PO Alix Blot	Force: In a stairwell of Brooklyn Central Booking, Police Officer Alix Blot used physical force against § 87(2)(b)	K . Unsubstantiated

Case Summary

On January 21, 2022, § 87(2)(b) filed this complaint with the CCRB via the call processing system (01 BR).

On January 16, 2022, at approximately 1:45 a.m., § 87(2)(b) was placed in a segregated cell at Brooklyn Central Booking (BCB) after being arrested and transported to BCB from the 73rd precinct station house. § 87(2)(b) objected to the cleanliness of the segregated cell (also known as an “Intake Special Cell”). Police Officer Patrick Venetek, a Brooklyn Court officer, showed § 87(2)(b) other segregated cells that he could be placed in. § 87(2)(b) refused to enter any segregated cell because of their dirty condition and asked to be taken to a general holding cell. PO Venetek attempted to place § 87(2)(b) in handcuffs. § 87(2)(b) resisted being placed in handcuffs. PO Venetek was soon assisted by Sergeant James Divino, a Brooklyn Court officer, and both officers wrestled with § 87(2)(b) arms in an attempt to put him in handcuffs (**Allegations A-B, Force, exonerated**). PO Venetek and Sgt. Divino – with the help of a third unidentified officer – pulled § 87(2)(b) to the ground as they continued to try to place him in handcuffs (**Allegations C-D, Force, exonerated**). Sgt. Divino is alleged to have placed § 87(2)(b) in a chokehold and to have restricted his breathing during this takedown (**Allegations E-F, Force, unsubstantiated**). While Sgt. Divino and PO Venetek were attempting to place § 87(2)(b) in handcuffs, several officers responded to the altercation. While § 87(2)(b) was on the ground, unidentified officers allegedly kicked him (**Allegation G, Force, unsubstantiated**) and Sgt. Divino administered three to four hand strikes to the right side of § 87(2)(b) face (**Allegation H, Force, substantiated**). § 87(2)(b) was then placed in handcuffs and leg shackles, and an ambulance was called to transport § 87(2)(b) to the hospital.

Police Officer Alix Blot and Police Officer Jamiealexander Fenton – both of the 73rd precinct – transported § 87(2)(b) from BCB to the hospital. PO Blot and PO Fenton carried § 87(2)(b) while walking him up the stairs to take him out of BCB (**Allegations I-J, Force, exonerated**), and PO Blot allegedly punched § 87(2)(b) in the right side of § 87(2)(b) neck (**Allegation K, Force, unsubstantiated**).

This case was initially assigned to Investigator Lily Kim and was reassigned to Investigating Attorney Casey Graetz.

The CCRB obtained surveillance footage from BCB that captures the first instance of force (02 BR). There is no relevant body worn camera footage of either incident as officers do not wear BWCs in BCB.

Findings and Recommendations

Allegation (A) Force: In front of the segregation cells in Brooklyn Central Booking, Sergeant James Divino used physical force against § 87(2)(b)

Allegation (B) Force: In front of the segregated cells in Brooklyn Central Booking, Police Officer Patrick Venetek used physical force against § 87(2)(b)

Allegation (C) Force: In front of the segregated cells in Brooklyn Central Booking, Police Officer Patrick Venetek used physical force against § 87(2)(b)

Allegation (D) Force: In front of the segregated cells in Brooklyn Central Booking, Sergeant James Divino used physical force against § 87(2)(b)

Allegation (E) Force: In front of the segregated cells in Brooklyn Central Booking, Sergeant James Divino restricted § 87(2)(b) breathing.

Allegation (F) Force: In front of the segregated cells in Brooklyn Central Booking, Sergeant

James Divino used a chokehold against § 87(2)(b)

Allegation (G): In front of the segregated cells in Brooklyn Central Booking, Officers kicked

§ 87(2)(b)

Allegation (H): In front of the segregated cells in Brooklyn Central Booking, Sergeant James Divino used hand strikes against § 87(2)(b)

It is undisputed that § 87(2)(b) refused to enter any of the BCB segregated cells when PO Venetek attempted to place him there and that Sgt. Divino and PO Venetek used force to place § 87(2)(b) in handcuffs when he refused to comply with PO Venetek.

§ 87(2)(b) testified that he refused to enter any of the segregation cells because of their condition and resisted being placed in a dirty cell by planting his feet (03 BR). Eight to nine officers ran to the area when § 87(2)(b) refused to enter a cell. While PO Venetek held § 87(2)(b) left arm, Sgt. Divino placed § 87(2)(b) in a chokehold with his left arm and grabbed § 87(2)(b) right arm with his right hand. § 87(2)(b) felt his breathing become restricted, but § 87(2)(b) grabbed Sgt. Divino's left arm with his hand and was able to pull it away from his throat enough that he could breathe. PO Venetek wrapped his arms around § 87(2)(b) legs which caused § 87(2)(b) to fall to the ground. Sgt. Divino punched § 87(2)(b) in the right side of his face, causing a swollen and bruised right eye and a busted lip. While § 87(2)(b) was on the ground, he was kicked in his left ribcage and his joints. § 87(2)(b) was put in handcuffs and leg shackles and brought to stand up. § 87(2)(b) was then taken to an intake cell where photos were taken of his injuries.

Sgt. Divino was at the intake desk down the hallway from the segregated cells when he first heard PO Venetek trying to get § 87(2)(b) to go into a segregated cell voluntarily (04 BR). § 87(2)(b) started yelling, and Sgt. Divino walked toward § 87(2)(b) and PO Venetek. Sgt. Divino saw § 87(2)(b) had one handcuff on and was resisting PO Venetek's efforts to place his other hand in handcuffs. Sgt. Divino was concerned that the loose handcuff could have hit § 87(2)(b) or an officer and wanted to get § 87(2)(b) rear cuffed and placed in a cell quickly and safely. Sgt. Divino tried to assist PO Venetek in getting § 87(2)(b) loose hand behind § 87(2)(b) back by pulling on § 87(2)(b) arm. Sgt. Divino did not recall how § 87(2)(b) ended up on the ground. § 87(2)(b) was face down on the ground and had both hands underneath his chest. Sgt. Divino and PO Venetek yelled at least six verbal commands telling § 87(2)(b) to put his hands behind his back. Sgt. Divino attempted to pry § 87(2)(b) arm out from under him multiple times. Sgt. Divino then struck § 87(2)(b) on the mouth and right side of the face three or four times with a closed fist. Sgt. Divino used closed-fist strikes because § 87(2)(b) did not comply with the officers' orders and the officers were not able to pull § 87(2)(b) arms out from under him. Sgt. Divino believed there was no other way to overpower § 87(2)(b) and Sgt. Divino did not want to have § 87(2)(b) lying on his chest for too long. Sgt. Divino denied using a chokehold, restricting § 87(2)(b) breathing, or making contact with § 87(2)(b) neck or windpipe.

PO Venetek attempted to place § 87(2)(b) in handcuffs after § 87(2)(b) refused to be placed in a segregation cell (05 BR). § 87(2)(b) physically resisted being placed in handcuffs by not giving PO Venetek the hand that had not been placed in a handcuff and by taking steps away from PO Venetek. PO Venetek did not remember how § 87(2)(b) was taken to the ground, but he and § 87(2)(b) both went to the ground. PO Venetek pulled on the handcuffs to try to get § 87(2)(b) hand out from under him. Maybe four other officers – including Sgt. Divino – were also trying to get § 87(2)(b) hands out from under him, but they were not able to get § 87(2)(b) hands out from under him. After the officers had issued multiple commands and tried to pry § 87(2)(b) arms out from under him, Sgt. Divino used closed-fist hand strikes to gain compliance from § 87(2)(b). PO Venetek did not witness any other force used by any other officers. PO Venetek denied using a chokehold or restricting § 87(2)(b) breathing in any way or witnessing any officer do so.

PO Fenton explained that he and PO Blot approached § 87(2)(b) while § 87(2)(b) was on the ground and PO Venetek and Sgt. Divino were attempting to place him in handcuffs (07 BR). § 87(2)(b) was on the floor with his arms underneath his body. PO Venetek and Sgt. Divino were wrestling § 87(2)(b) arms, trying to get § 87(2)(b) arms out from underneath him to put him in handcuffs. PO Fenton did not witness any officer use any force against § 87(2)(b) other than pulling on his arms. PO Blot did not witness any force used to place § 87(2)(b) in handcuffs (06 BR).

Sgt. Divino, PO Venetek, and Lieutenant Garrick Lee completed a TRI to document the force used to place § 87(2)(b) in handcuffs (09-11 BR). The TRI describes PO Venetek placing one handcuff onto § 87(2)(b) left wrist and § 87(2)(b) “pull[ing] his body away and flail[ing] his arms to avoid having his other hand rear cuffed” (09 BR). Sgt. Divino and PO Venetek took § 87(2)(b) to the ground who “placed both hands under his body on the front side and tensed up.” After giving § 87(2)(b) multiple commands to put his hands behind his back and multiple attempts to pull his arms out from underneath him, Sgt. Divino struck § 87(2)(b) with a closed fist three times until § 87(2)(b) “stopped resisting and placed his hands behind his back.” Sgt. Divino described himself as using and being the victim of force (10 BR). The force used against Sgt. Divino was active resistance and wrestling/grappling, and the type of force used by Sgt. Divino was hand strike, wrestling/grappling, and forcible takedown. The reason for force was to overcome resistance or aggression. The injury sustained by § 87(2)(b) as a result of Sgt. Divino’s force was minor lacerations/abrasion and minor swelling. PO Venetek describes the same reason for force, force used against him, and injury sustained by § 87(2)(b) (11 BR). PO Venetek used forcible take down and wrestling/grappling and indicated that § 87(2)(b) injury was sustained by a hand strike by Sgt. Divino.

BCB’s surveillance camera #BKCB-062 (“Intake – Hallway to Old Court”) captured much of PO Venetek and Sgt. Divino’s altercation with § 87(2)(b) outside the BCB segregation cells (02 BR). This video does not have audio. From 40:36-44:45 of the video, PO Venetek admits § 87(2)(b) into different segregation cells and § 87(2)(b) gestures toward the cells and talks to PO Venetek. At 43:50, § 87(2)(b) appears to refuse to reenter a segregation cell. At 44:50, PO Venetek walks behind § 87(2)(b) and pulls out his handcuffs. At 44:57, PO Venetek puts a handcuff on § 87(2)(b) left wrist. § 87(2)(b) turns around to face PO Venetek. PO Venetek attempts to turn § 87(2)(b) around by touching his left handcuffed arm. At 45:20, an unidentified officer approaches and speaks with § 87(2)(b) while PO Venetek continues to attempt to place § 87(2)(b) in handcuffs. At 45:27, the unidentified officer grabs § 87(2)(b) right arm. At 45:30, Sgt. Divino approaches § 87(2)(b) and also takes § 87(2)(b) right arm. From 45:38 through 46:04, Sgt. Divino, PO Venetek, and the unidentified officer grapple with § 87(2)(b) arms. At 45:42, § 87(2)(b) pulls his left arm back and outward, away from his right arm, and his arm tenses straight so that the officers struggle to get his hands behind him. PO Venetek has control over § 87(2)(b) arm by holding onto the other cuff rather than his arm. At 45:47, § 87(2)(b) bends both of his arms at the elbow and brings them in front of himself, tensing his arms in the bent position. PO Venetek and Sgt. Divino struggle to straighten his arms. At 46:04, another unidentified officer arrives and reaches towards § 87(2)(b) left arm but does not appear to grab hold of it. Sgt. Divino attempts to wrap his arm around § 87(2)(b) right leg to take him down. The unidentified officer pulls on § 87(2)(b) left leg. PO Venetek appears to apply pressure to § 87(2)(b) back. At 46:12, § 87(2)(b) is taken to the ground face down. PO Venetek falls on top of § 87(2)(b) and Sgt. Divino falls to the ground next to § 87(2)(b). The first unidentified officer continues to hold onto § 87(2)(b) legs, which are bent at the knees. Sgt. Divino does not appear to put either of his arms near § 87(2)(b) neck while grappling with him or during the takedown. However, the second unidentified officer stands between the takedown and the camera such that his body blocks

the camera when the officers and § 87(2)(b) are on the ground. Because of the position of the second unidentified officer, not much of what happens to § 87(2)(b) on the ground can be seen. At 46:30, the second unidentified officer kneels by § 87(2)(b) legs, continuing to block the camera from what is going on with § 87(2)(b) torso and head. Between 46:34-46:53, four additional officers approach the altercation and kneel or stand near § 87(2)(b) and the other officers. Two of these officers are PO Blot and PO Fenton. Sgt. Divino is kneeling on § 87(2)(b) right side with his feet near a barred door. At 47:07, Sgt. Divino's right elbow swings back and forth very quickly, which could be at least three or four punches/hand strikes. The point of contact of Sgt. Divino's hand cannot be seen. At 47:13, after the second or third apparent strike and before the last strike, a white male officer with a ponytail – identified by the investigation as Police Officer Kevin Shaw, a Brooklyn Court officer – appears to tap Sgt. Divino on the shoulder a few times.

Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody (**12 BR**). In all circumstances, any application or use of force must be reasonable under the circumstances. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In officers' use of force, and in a determination of reasonableness of that force, multiple factors are considered including the nature and severity of the crime/circumstances, actions taken by the subject and the duration of those actions, immediacy of the perceived threat or harm to any party, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of MOS, physical condition and age of the subject in comparison to the MOS, subject's violent history, if known, presence of hostile crowd or agitators, and any stimulant or narcotic use that may affect pain tolerance or the likelihood of violence.

PO Venetek and Sgt. Divino wrestled and grappled with § 87(2)(b) arms and eventually took § 87(2)(b) to the ground in an attempt to place § 87(2)(b) in handcuffs after § 87(2)(b) refused to reenter a segregation cell due to the dirty condition of the cells. PO Venetek showed § 87(2)(b) different segregation cells to accommodate his complaints about their condition and talked with him for several minutes before attempting to place him in handcuffs. § 87(2)(b) resisted being placed in handcuffs by moving and tensing his arms away from the officers. Sgt. Divino, PO Venetek, and an unidentified officer grappled with § 87(2)(b) for a couple of minutes before taking § 87(2)(b) to the ground in their continued efforts to place him in handcuffs. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations A-D** be closed as **exonerated**.

None of the four officers interviewed admitted to witnessing § 87(2)(b) be placed in a chokehold, have his breathing restricted, or be kicked, or to taking any of these actions themselves. None of these actions can be seen in the surveillance footage. However, most of what takes place when § 87(2)(b) is on the ground is completely obstructed from view of the camera. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations E-G** be closed as **unsubstantiated**.

Sgt. Divino admitted to striking § 87(2)(b) on the mouth and right side of the face three or four

times with a closed fist to gain § 87(2)(b) compliance and place him in handcuffs. Although § 87(2)(b) was resisting being placed in handcuffs, both Sgt. Divino and PO Venetek acknowledged that § 87(2)(b) was not doing anything with his body other than having his arms underneath his chest. § 87(2)(g)

§ 87(2)(b) had been on the ground for less than a minute when Sgt. Divino used hand strikes. There were also eight members of service surrounding § 87(2)(b) at the time. § 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **substantiated**.

Allegation (I): In a stairwell of Brooklyn Central Booking, Police Officer Alix Blot used physical force against § 87(2)(b)

Allegation (J): In a stairwell of Brooklyn Central Booking, Police Officer Jamiealexander Fenton used physical force against § 87(2)(b)

Allegation (K): In a stairwell of Brooklyn Central Booking, Police Officer Alix Blot used physical force against § 87(2)(b)

It is undisputed that PO Blot and PO Fenton escorted § 87(2)(b) from BCB to the ambulance after force was used to place § 87(2)(b) in handcuffs.

§ 87(2)(b) testified that while escorting him through BCB on the way to the ambulance, PO Blot and PO Fenton became impatient because § 87(2)(b) was not walking fast enough because his ankles were shackled, and his ankle was messed up in the way that the shackles were (03 BR). When § 87(2)(b) and the officers reached a stairwell, PO Blot hooked his arm through § 87(2)(b) handcuffs to pull him up and forward and PO Fenton grabbed § 87(2)(b) ankle cuffs. The officers lifted § 87(2)(b) off of the ground and carried him up two or three steps. PO Blot used his other hand to punch § 87(2)(b) in the right side of his neck. When § 87(2)(b) pointed out that there was a surveillance camera at the top of the stairs, the officers set him down and told him to walk again. At that point, § 87(2)(b) told the officers they would have to drag him up the steps. PO Blot hooked his arm through § 87(2)(b) arms again and dragged § 87(2)(b) up steps.

PO Fenton testified that he and PO Blot walked § 87(2)(b) downstairs, through a tunnel, and up two levels of stairs to take him outside of BCB to the ambulance (07 BR). PO Blot and PO Fenton walked § 87(2)(b) arm in arm – each officer had one of their arms intertwined with one of § 87(2)(b) arms. § 87(2)(b) did not have trouble walking with his leg shackles. Near the bottom of the first set of stairs, § 87(2)(b) told PO Fenton and PO Blot that he was going to “make them work” and dropped his body weight, bending his knees. PO Fenton and PO Blot then carried § 87(2)(b) up the stairs and outside of the building. PO Fenton carried § 87(2)(b) legs by having his arm around § 87(2)(b) legs below the knees and PO Blot carried § 87(2)(b) upper body. PO Blot did not hold onto § 87(2)(b) handcuffs while the officers carried him, and PO Fenton did not hold onto § 87(2)(b) leg shackles. PO Fenton did not witness any officer use hand strikes against § 87(2)(b) and did not himself use any hand strikes against § 87(2)(b). The officers carried § 87(2)(b) for about two minutes total. § 87(2)(b) then returned to walking arm in arm with the officers without issue.

PO Blot testified that he and PO Fenton walked § 87(2)(b) to an ambulance outside of BCB (06 BR). PO Blot denied punching § 87(2)(b) or witnessing any other officer punch § 87(2)(b) while walking him to the ambulance. When PO Blot, PO Fenton, and § 87(2)(b) were about halfway along the basement tunnel of BCB, § 87(2)(b) said “as a big guy, I’m going to see how big you are and I’m going to make you carry me.” § 87(2)(b) dropped his bodyweight so that the officers had to lift him up and carry him to the ambulance. PO Fenton held § 87(2)(b) by the legs and PO Blot held § 87(2)(b) under his armpits. PO Blot did not use any force against § 87(2)(b) other than lifting § 87(2)(b) to transport him to the ambulance.

The investigation was unable to acquire surveillance footage of PO Blot and PO Fenton escorting § 87(2)(b) through and out of BCB. However, at 49:00-49:20 of BCB’s surveillance camera #BKCB-062, § 87(2)(b) can be seen walking away from the segregation cells after being placed in handcuffs and leg shackles (02 BR). And at 2:49:58-2:50:08 of BCB’s surveillance camera #BKCB-C018 (“Intake-Man Trap Near Entrance”), § 87(2)(b) is escorted by PO Venetek, Sgt. Divino, and PO Shaw into a cell (20 BR). § 87(2)(b) appears to be walking in leg shackles without issue. Finally, at 1:50:06-2:52:04 of BCB’s surveillance camera #BKCB-C017 (“Intake-Pre Search Male Cell”), § 87(2)(b) can be seen taking steps and pacing around a small cell while in leg shackles (21 BR).

Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody (12 BR). In all circumstances, any application or use of force must be reasonable under the circumstances. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In officers’ use of force, and in a determination of reasonableness of that force, multiple factors are considered including the nature and severity of the crime/circumstances, actions taken by the subject and the duration of those actions, immediacy of the perceived threat or harm to any party, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of MOS, physical condition and age of the subject in comparison to the MOS, subject’s violent history, if known, presence of hostile crowd or agitators, and any stimulant or narcotic use that may affect pain tolerance or the likelihood of violence.

It is undisputed that PO Fenton and PO Blot carried § 87(2)(b) up the stairs while escorting him through BCB to the ambulance. However, § 87(2)(b) contends that he was dragged and carried up a few stairs because he was struggling to walk in leg shackles before he refused to walk, while PO Fenton and PO Blot both testified that § 87(2)(b) was only carried because he refused to walk. Surveillance footage from BCB shows § 87(2)(b) walking after being placed in leg shackles, which contradicts § 87(2)(b) description of struggling to walk. § 87(2)(g)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) It is therefore recommended **Allegations H-I** be closed as **exonerated**.

PO Fenton and PO Blot denied punching § 87(2)(b) or employing any force other than carrying him when he refused to walk. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations J** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaint (202105548), which was referred to IAB (**13 BR**).
- Sgt. Divino has been a member-of-service for 14 years and has been a subject in 5 other CCRB complaints and 10 other allegations, none of which were substantiated (**14 BR**). § 87(2)(g)
- PO Venetek has been a member-of-service for 16 years and has been a subject in 4 other CCRB complaints and 4 other allegations, of which one was substantiated. (**15 BR**):
 - 201507511 involved a substantiated allegation of abuse of authority - other against PO Venetek for forcibly removing a civilian to the hospital. The Board recommended formalized training and the NYPD imposed no disciplinary action.
- PO Blot has been a member-of-service for three years and this is the first CCRB complaint to which he has been a subject (**16 BR**).
- PO Fenton has been a member-of-service for one year and this is the first CCRB complaint to which he has been a subject (**17 BR**).

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of October 19, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**18 BR**).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 16

Investigator:	<u>/s/ Casey Graetz</u>	<u>Inv. Atty. Casey Graetz</u>	<u>10/21/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Tessa Yesselman</u>	<u>IM Tessa Yesselman</u>	<u>10/24/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date